



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1798: FAFSA; financial aid awareness program

GRESS FLOOR AMENDMENT

1. Specifies that statute that prohibits a school district or charter school from releasing student transcripts to specified entities does not prohibit a school district or charter school from entering into a partnership with postsecondary institutions in Arizona for the sole purpose of providing information to students about educational opportunities available at each postsecondary institution.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1798
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 15-142, Arizona Revised Statutes, is amended
3 to read:

4 15-142. Directory information relating to students; notice;
5 opt-out; consent; access to directory information;
6 access to school property; violation; definition

7 A. Except as provided in subsection B of this section, a school may
8 disclose directory information relating to students in accordance with
9 state and federal law if the school first notifies the parent or eligible
10 student of all of the following:

11 1. The types of information that the school has designated as
12 directory information.

13 2. The right of the parent or eligible student to refuse the
14 school's designation of any or all of the types of information about the
15 student as directory information.

16 3. The period of time within which a parent or eligible student
17 must notify the school in writing that the parent or eligible student does
18 not want any or all of the types of information about the student
19 designated as directory information.

20 B. Except as required by state or federal law, a school may not
21 disclose the address, telephone number or email address of a student
22 unless either:

23 1. The parent or eligible student has affirmatively consented in
24 writing to the disclosure.

25 2. The parent or eligible student has not opted out of the
26 disclosure pursuant to subsection A of this section and the disclosure is
27 either:

1 (a) To one or more students who are enrolled in the school and for
2 educational purposes.

3 (b) To school employees and for school business purposes.

4 C. If the governing board of a school district or the governing
5 body of a charter school allows the release of directory information
6 relating to students, subject to subsections A and B of this section, or
7 allows access to school buildings, school grounds or other school property
8 to persons who inform students of educational or occupational
9 opportunities, the governing board or governing body shall provide access
10 to directory information relating to students and to school property on
11 the same basis for official recruiting representatives of the militia of
12 this state and the armed services of the United States for the purpose of
13 informing students of educational and occupational opportunities available
14 in the militia and the armed services. If the school district or charter
15 school allows the release of directory information relating to students,
16 subject to subsections A and B of this section, the information shall be
17 released on or before October 31 of each year. The department of
18 education shall design and provide to school districts and charter schools
19 a form to allow parents or eligible students to request that a student's
20 directory information not be released pursuant to the elementary and
21 secondary education act as reauthorized by the no child left behind act of
22 2001. School districts and charter schools shall distribute the form to
23 parents and eligible students each year separate from any other form. If
24 a school district or charter school distributes materials to parents and
25 eligible students through an electronic communication or on an internet
26 website, the form may be distributed in the same manner. A person who is
27 wrongfully denied access to directory information or access to school
28 buildings, school grounds or other school property may notify the
29 department of education, which shall report the alleged violation to the
30 United States department of education.

31 D. Notwithstanding subsection C of this section, student
32 transcripts may not be released to representatives of postsecondary
33 institutions, the militia of this state or the armed services of the
34 United States unless the student consents in writing to the release of the
35 student's transcript. The governing board of the school district or the
36 governing body of the charter school shall provide the student with a
37 transcript release form that allows the student to designate in separate
38 check boxes whether the transcript is to be released to postsecondary
39 institutions, the militia of this state or the armed services of the
40 United States, or to any combination of these entities. [THIS SUBSECTION
41 DOES NOT PROHIBIT A SCHOOL DISTRICT OR CHARTER SCHOOL FROM ENTERING INTO A
42 PARTNERSHIP WITH ONE OR MORE POSTSECONDARY INSTITUTIONS IN THIS STATE FOR
43 THE SOLE PURPOSE OF PROVIDING INFORMATION TO STUDENTS ABOUT EDUCATIONAL
44 OPPORTUNITIES THAT ARE AVAILABLE AT EACH POSTSECONDARY INSTITUTION.]

45 E. This section does not authorize school districts or charter
46 schools to release information that would violate the family educational
47 rights and privacy act of 1974 (20 United States Code section 1232g). Any

1 person who suspects that a school district or charter school has knowingly
2 violated the family educational rights and privacy act may notify the
3 principal of the charter school or the superintendent of the school
4 district. If the matter is not satisfactorily resolved by the principal
5 of the charter school or the superintendent of the school district within
6 sixty days after the notice, the person may file a complaint with the
7 superintendent of public instruction. If the superintendent of public
8 instruction determines that a school district or charter school is
9 knowingly in violation of the family educational rights and privacy act,
10 the superintendent of public instruction shall notify the school district
11 or charter school that it is in violation of the family educational rights
12 and privacy act. If the superintendent of public instruction determines
13 that the school district or charter school has failed to correct the
14 violation within sixty days after a notice has been issued pursuant to
15 this subsection, the superintendent of public instruction may inform the
16 family policy compliance office of the United States department of
17 education of a possible violation of the family educational rights and
18 privacy act.

19 F. For the purposes of this section, "eligible student" means a
20 student who is at least eighteen years of age or is emancipated.>>

21 Sec. 2. Title 15, chapter 2, article 2, Arizona Revised Statutes,
22 is amended by adding section 15-249.20, to read:

23 15-249.20. Financial aid awareness program; eligibility
24 requirements; annual determination; designation;
25 definitions

26 A. THE FINANCIAL AID AWARENESS PROGRAM IS ESTABLISHED WITHIN THE
27 DEPARTMENT OF EDUCATION TO RECOGNIZE SCHOOLS IN THIS STATE THAT PROVIDE
28 FINANCIAL AID AWARENESS ACTIVITIES AND SUPPORT FOR COMPLETING THE FREE
29 APPLICATION FOR FEDERAL STUDENT AID. THE DEPARTMENT SHALL ADMINISTER THE
30 PROGRAM AND SHALL COLLABORATE WITH THE ARIZONA BOARD OF REGENTS IN
31 ADMINISTERING THE PROGRAM. BEGINNING IN THE 2027-2028 SCHOOL YEAR, ANY
32 SCHOOL IN THIS STATE MAY ELECT TO PARTICIPATE IN THE PROGRAM BY NOTIFYING
33 THE DEPARTMENT AND BY DEMONSTRATING THAT THE SCHOOL MEETS ALL OF THE
34 FOLLOWING ELIGIBILITY REQUIREMENTS:

35 1. DESIGNATES AT LEAST ONE EMPLOYEE AS THE SCHOOL'S POINT OF
36 CONTACT FOR THE FREE APPLICATION FOR FEDERAL STUDENT AID. EACH DESIGNATED
37 EMPLOYEE SHALL:

38 (a) COMPLETE AN INITIAL ORIENTATION PROGRAM FOR THE FREE
39 APPLICATION FOR FEDERAL STUDENT AID THAT IS APPROVED OR RECOGNIZED BY
40 EITHER THE ARIZONA BOARD OF REGENTS OR A FREE APPLICATION FOR FEDERAL
41 STUDENT AID SUPPORT PARTNER. THE DESIGNATED EMPLOYEE MAY RECEIVE
42 CONTINUING EDUCATION CREDITS FOR:

43 (i) COMPLETING THE ORIENTATION PROGRAM REQUIRED BY THIS
44 SUBDIVISION.

45 (ii) COMPLETING ANY TRAINING AND EDUCATION AFTER THE ORIENTATION
46 PROGRAM TO LEARN ABOUT UPDATES TO FEDERAL POLICIES AND PROCESSES RELATING
47 TO THE FREE APPLICATION FOR FEDERAL STUDENT AID.

1 (b) PROVIDE INFORMATION ABOUT THE FREE APPLICATION FOR FEDERAL
2 STUDENT AID, INCLUDING INFORMATION ABOUT AVAILABLE RESOURCES AND
3 ASSISTANCE, TO STUDENTS AND FAMILIES OF STUDENTS.

4 2. ANNUALLY REPORTS TO THE ARIZONA BOARD OF REGENTS AND THE
5 DEPARTMENT OF EDUCATION THE NAME AND CONTACT INFORMATION OF EACH EMPLOYEE
6 WHO IS DESIGNATED PURSUANT TO PARAGRAPH 1 OF THIS SUBSECTION.

7 3. INCLUDES THE NAME AND CONTACT INFORMATION OF EACH EMPLOYEE WHO
8 IS DESIGNATED PURSUANT TO PARAGRAPH 1 OF THIS SUBSECTION IN THE STUDENT
9 HANDBOOK AND IN AT LEAST ONE COMMUNICATION FROM THE SCHOOL TO STUDENTS AND
10 PARENTS OF STUDENTS.

11 4. POSTS THE NAME AND CONTACT INFORMATION OF EACH EMPLOYEE WHO IS
12 DESIGNATED PURSUANT TO PARAGRAPH 1 OF THIS SUBSECTION ON THE SCHOOL'S
13 WEBSITE.

14 5. DEVELOPS AND IMPLEMENTS A FREE APPLICATION FOR FEDERAL STUDENT
15 AID AWARENESS STRATEGY THAT IS ALIGNED WITH EDUCATION AND CAREER ACTION
16 PLAN REQUIREMENTS ADOPTED BY THE STATE BOARD OF EDUCATION. IF THE SCHOOL
17 PROVIDES INSTRUCTION TO HIGH SCHOOL STUDENTS, THE STRATEGY THAT IS
18 DEVELOPED PURSUANT TO THIS PARAGRAPH MUST PROVIDE, THROUGH THE SCHOOL'S
19 MESSAGING SYSTEM, SOCIAL MEDIA ACCOUNTS, EMAIL ACCOUNTS AND STUDENT
20 INFORMATION SYSTEM PORTAL, THE FOLLOWING INFORMATION IN GRADE-LEVEL
21 COMMUNICATIONS TO STUDENTS IN EACH OF GRADES NINE THROUGH TWELVE:

22 (a) THE PURPOSE OF THE FREE APPLICATION FOR FEDERAL STUDENT AID.

23 (b) THE BENEFITS OF COMPLETING THE FREE APPLICATION FOR FEDERAL
24 STUDENT AID.

25 (c) THE ROLE OF FINANCIAL AID IN POSTSECONDARY EDUCATION AND CAREER
26 PATHWAYS.

27 6. IF THE SCHOOL PROVIDES INSTRUCTION TO HIGH SCHOOL STUDENTS,
28 PROVIDES, THROUGH THE SCHOOL'S MESSAGING SYSTEM, SOCIAL MEDIA ACCOUNTS,
29 EMAIL ACCOUNTS AND STUDENT INFORMATION SYSTEM PORTAL, THE FOLLOWING
30 INFORMATION TO THE PARENTS OF STUDENTS WHO ARE IN GRADE TWELVE:

31 (a) THE IMPORTANCE OF COMPLETING THE PARENT OR CONTRIBUTOR PORTION
32 OF THE FREE APPLICATION FOR FEDERAL STUDENT AID.

33 (b) ANY SCHOOL-BASED OR STATEWIDE SUPPORT THAT IS AVAILABLE FOR
34 COMPLETING THE FREE APPLICATION FOR FEDERAL STUDENT AID.

35 (c) ANY RELEVANT DEADLINES OR RESOURCES.

36 B. THE DEPARTMENT OF EDUCATION SHALL ANNUALLY DETERMINE WHETHER
37 EACH SCHOOL THAT ELECTS TO PARTICIPATE IN THE PROGRAM MEETS THE
38 ELIGIBILITY REQUIREMENTS PRESCRIBED BY SUBSECTION A OF THIS SECTION. THE
39 DEPARTMENT MAY REQUIRE PARTICIPATING SCHOOLS TO SUBMIT REPORTS OR OTHER
40 EVIDENCE OF ELIGIBILITY IN A FORM AND MANNER PRESCRIBED BY THE DEPARTMENT.

41 C. A SCHOOL THAT ELECTS TO PARTICIPATE IN THE FINANCIAL AID
42 AWARENESS PROGRAM AND THAT MEETS THE ELIGIBILITY REQUIREMENTS, AS
43 DETERMINED BY THE DEPARTMENT PURSUANT TO SUBSECTION B OF THIS SECTION, MAY
44 INCLUDE THE FINANCIAL AID AWARENESS PROGRAM DESIGNATION IN THE SCHOOL
45 REPORT CARD REQUIRED BY SECTION 15-746 AND ON THE SCHOOL'S WEBSITE,
46 COMMUNICATIONS AND PROMOTIONAL MATERIALS.

47 D. FOR THE PURPOSES OF THIS SECTION:

House Amendments to S.B. 1798

1 1. "FREE APPLICATION FOR FEDERAL STUDENT AID" MEANS THE APPLICATION
2 THAT IS REQUIRED BY 20 UNITED STATES CODE SECTION 1090 FOR INDIVIDUALS
3 SEEKING TO APPLY FOR FEDERAL FINANCIAL AID.

4 2. "SCHOOL" MEANS A SCHOOL THAT IS OPERATED BY A SCHOOL DISTRICT OR
5 CHARTER SCHOOL.

6 Enroll and engross to conform

7 Amend title to conform

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